

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Catherine Twigg	Team: Team # 1	CCRB Case #: 201209245	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 07/08/2012 7:50 PM	Location of Incident: Georgia Avenue between New Lots Avenue and Newport Street		18 Mo. SOL 1/8/2014		Precinct: 75
Date/Time CV Reported Wed, 07/18/2012 2:31 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/18/2012 2:31 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. DT3 Dennis Friendly	02755	930185	NARCBBN		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM James Famiano	07548	936568	NARCBBN		
2. DT3 Jennifer Lavelle	01394	933921	NARCBBN		
Officer(s)	Allegation			Investigator Recommendation	
A . DT3 Dennis Friendly	Abuse: Det. Dennis Friendly searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.			A . Unsubstantiated	

Case Summary

On July 18, 2012, § 87(2)(b) called the Civilian Complaint Review Board (CCRB) to file the following complaint on his own behalf (encl. 7a-b).

On July 8, 2012, at 7:50 p.m., Det. Dennis Friendly of Brooklyn North Narcotics stopped § 87(2)(b) and § 87(2)(b) who were in a vehicle and arrested them both, resulting in the following allegations:

- **Allegation A: Abuse of Authority - Det. Dennis Friendly searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.**

§ 87(2)(g)

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b)
- § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on August 3, 2012 (encl. 8a-h). § 87(2)(g)

On July 8, 2012, § 87(2)(b) had been spending time for about an hour, with his friend, “§ 87(2)(b) identified by the investigation as § 87(2)(b) in § 87(2)(b)s apartment, § 87(2)(b), in Brooklyn. § 87(2)(b) had previously arranged to meet his friend, “§ 87(2)(b) identified by the investigation as § 87(2)(b) to discuss buying a phone, an HTC Mytouch 4G, that § 87(2)(b) was selling. At approximately 7:50 p.m., § 87(2)(b) stated that the time was between 12:00 p.m. and 2:00 p.m.], § 87(2)(b) went outside to meet § 87(2)(b) at the corner of Georgia Avenue and New Lots Avenue in Brooklyn, a few minutes after § 87(2)(b) called and said that he was in the area. § 87(2)(b) had stopped his car, a 1997 white Altima four-door sedan, in a parking space on Georgia Avenue between New Lots Avenue and Newport Avenue and waited for five or ten minutes before § 87(2)(b) came out. § 87(2)(b) was wearing swimming shorts and a t-shirt. § 87(2)(b) was wearing swimming shorts. § 87(2)(b) and § 87(2)(b) had not drunk any alcohol or taken any drugs that day.

As § 87(2)(b) crossed Newport Street and approached § 87(2)(b)s car, he saw an unmarked dark gray Dodge or Chrysler van with a flat back turning off New Lots Avenue, onto Newport Avenue, but didn’t pay any attention to it. § 87(2)(b) talked to § 87(2)(b) through the passenger side window of the car for about thirty seconds. § 87(2)(b) had previously discussed buying this car, but had not seen it or seen pictures of it before this occasion. § 87(2)(b) informed § 87(2)(b) that he didn’t have registration or insurance because the car belonged to his sister. Then § 87(2)(b) entered the vehicle and sat in the passenger seat. § 87(2)(b) later stated that he entered the vehicle before § 87(2)(b) mentioned

the lack of registration or insurance, planning to show § 87(2)(b) the phone]. § 87(2)(b) shook § 87(2)(b)'s hand, but did not give him anything, including the cell phone. § 87(2)(b) told him to turn left around the corner in front of them onto Newport Avenue, where the car would be less likely to be ticketed. The car was messy, and there was a crumpled McDonald's paper bag thrown on the floor in between the front seats, where the center console would be, although there was no center console in the car. About a minute passed since § 87(2)(b) entered the car, which § 87(2)(b) turned his car on and reversed a short distance, away from the car parked in front of him. A van was stopped at the stop sign to the right of § 87(2)(b)'s vehicle, preventing him from pulling out, so § 87(2)(b) waited for space to pull out.

Two officers exited the van, wearing their badges around their necks, and came towards § 87(2)(b)'s vehicle. The driver was Det. Dennis Friendly, who was identified by the investigation and was described as an African American male officer, standing 6' tall, weighing 210 or 220 pounds, with short black hair, wearing glasses and plain clothes, including cargo pants, a dark green polo shirt and boots. The passenger was Det. Jennifer Lavelle, who was identified by the investigation and was described as a Caucasian female officer, standing 5'8" or 9" tall, weighing about 170 pounds, with medium-length blond hair, wearing plain clothes. § 87(2)(b) was arrested again after this incident by this officer and later learned that the officer's name was "Lavelle".

Det. Friendly approached § 87(2)(b) and Det. Lavelle approached § 87(2)(b). Det. Friendly asked § 87(2)(b) to step out of the car. § 87(2)(b) complied and exited the vehicle, standing in the street. Det. Friendly asked § 87(2)(b) if there was anything sharp in his pockets. § 87(2)(b) said he didn't have anything. Det. Friendly patted and then entered all the pockets on his shorts: two front pockets, a lower pocket on the right side of § 87(2)(b) thigh and a back pocket on the right side. Det. Friendly took everything out of § 87(2)(b) side pocket: his identification, money, a few cards, his keys and his phone. § 87(2)(b) asked why he was being searched, but the officers ignored him. § 87(2)(b) saw that § 87(2)(b)'s front pockets were searched while § 87(2)(b) was being searched and before more officers arrived, but could not recall which officer searched him.

In his intake statement, § 87(2)(b) said that a second police vehicle, a white delivery van with no windows, with two officers in it, arrived immediately after he exited his vehicle, although in his CCRB interview he said that these officers arrived after Det. Friendly had frisked and searched him. The driver was described as a white male, 5'8", weighing 200 pounds, with a bald head, wearing plainclothes and the passenger was described as a light-skinned Hispanic or Caucasian male of average height, weighing 180 pounds, wearing plainclothes. These officers were not identified by the investigation. In his intake statement, § 87(2)(b) said that it was one of these officers who frisked him.

Det. Friendly and Det. Lavelle asked § 87(2)(b) and § 87(2)(b) what they were doing there and asked § 87(2)(b) why he didn't have registration stickers. The officers asked why they were together and what they were doing. Det. Friendly held § 87(2)(b)'s phone, looking at fingerprints on the touchscreen and asking why it looked like that and if the fingerprints were heroin residue. He did not know how Det. Friendly obtained the phone. Det. Friendly asked § 87(2)(b) to tell him now before he went to test it. § 87(2)(b) said that Det. Friendly could test it. Det. Friendly walked to his vehicle then

immediately came back and returned the phone to § 87(2)(b) or put it with § 87(2)(b)'s other possessions.

Det. Friendly directed § 87(2)(b) to stand at the back of the vehicle and then entered the front passenger seat. § 87(2)(b) stood at the back of the vehicle with the unidentified officer who had been driving the van, facing away from the car. § 87(2)(b) remained standing next to the backseat door on the driver's side. § 87(2)(b) did not see where in the car Det. Friendly searched or whether any other officers might have searched because he was looking away from the car. The car was already messy, with garbage around, so he could not tell if things had been moved. At some point, while § 87(2)(b) was standing at the back of the car, § 87(2)(b) came outside.

The unidentified officer who had been driving the van started taking § 87(2)(b) personal information down. Det. Friendly handed this officer a pair of handcuffs and the officer put the contents of § 87(2)(b) pockets into an envelope. § 87(2)(b)'s property was placed in an envelope by Det. Lavelle. § 87(2)(b) asked all the officers why he was being arrested, but no one answered him. § 87(2)(b) and § 87(2)(b) were both handcuffed and placed in the white van. Finally, Det. Friendly told him that they found heroin residue in a straw. § 87(2)(b) had not observed this straw in the car. § 87(2)(b) and § 87(2)(b) were put in the white van with four or five black males and driven around until they went to the station house at about 9:00 p.m.

§ 87(2)(b) was charged with § 87(2)(b). § 87(2)(b) and § 87(2)(b) were charged with § 87(2)(b). The paperwork indicated that § 87(2)(b) was driving a 2002 silver Toyota Camry.

Victim: § 87(2)(b)

- § 87(2)(b)

Phone Statement

On July 23, 2012, § 87(2)(b) provided a telephone statement to the CCRB (encl. 10).

§ 87(2)(g) § 87(2)(b) had contacted § 87(2)(b) online through Craigslist before meeting him to purchase a phone from him. § 87(2)(b) was driving a car which belongs to his sister, § 87(2)(b).

After asking them to exit, Det. Friendly patted § 87(2)(b) and another officer patted § 87(2)(b). The officers either pulled out or requested § 87(2)(b)'s wallet and phone, which were in his pockets, but he couldn't recall whether he provided these items or the officers retrieved them. Det. Friendly took § 87(2)(b)'s phone, said "Aha," and noted that there was drug residue on the screen. § 87(2)(b) did not have any drugs on him or in the car. Then, § 87(2)(b) who was standing about 10 feet away from the car, observed the officers searching his vehicle, looking around and under the seats. He didn't see them open any compartments, but saw the officers shuffling through the contents of the car. After 5 minutes, § 87(2)(b) and § 87(2)(b) were placed in handcuffs and put in the van, which appeared to be a dog catching van.

§ 87(2)(b) provided a telephone statement to the CCRB on July 23, 2012. On the same day, § 87(2)(b) scheduled a CCRB interview for 2 p.m. on July 31, 2012. On July 31, 2012, § 87(2)(b) missed his appointment at CCRB without calling in advance to reschedule or cancel. On August 1, 2012, a missed appointment letter was sent to him. On the same day, § 87(2)(b) was reached by phone and rescheduled his CCRB interview for August 13, 2012. On August 13, 2012, § 87(2)(b) missed his second interview at the CCRB without calling in advance to reschedule or cancel. On May 3, 2013, a search of the Department of Corrections Inmate Tracking System confirmed that § 87(2)(b) was not incarcerated with the City of New York while the CCRB was making efforts to contact him.

Witness: § 87(2)(b)

- § 87(2)(b) is a male. Further pedigree and employment information was not obtained.

Phone Statement

§ 87(2)(b) provided the following phone statement to the CCRB on August 3, 2012 (encl. 12).
§ 87(2)(g) When § 87(2)(b) went outside, there were officers talking to § 87(2)(b) who was sitting in the driver's seat of the car or standing by the driver's side of the car and may have been in handcuffs. § 87(2)(b) was telling the officers that he had just got the car and it wasn't his. § 87(2)(b) did not hear anything more of their conversation. § 87(2)(b) walked towards § 87(2)(b) who was standing by the car in handcuffs with two white male officers. § 87(2)(b) was telling the officers that he didn't have anything on him and they were ignoring him. When the officers placed § 87(2)(b) and § 87(2)(b) under arrest, § 87(2)(b) left. § 87(2)(b) did not see any officers search or look in the car at all.

§ 87(2)(b) provided a telephone statement to the CCRB on August 3, 2012. On the same day, § 87(2)(b) scheduled a CCRB interview for August 14, 2012 and a letter was sent to § 87(2)(b). On August 14, 2012, § 87(2)(b) called and left a voicemail cancelling his appointment at CCRB in advance. Between August 14 and August 22, 2012 four additional calls were placed to § 87(2)(b) and voicemail messages were left. On August 22, 2012, a final letter was sent to § 87(2)(b). On May 3, 2013, a search of the Department of Corrections Inmate Tracking System confirmed that § 87(2)(b) was not incarcerated with the City of New York while the CCRB was making efforts to contact him.

NYPD Statement(s):

Subject Officer: DET. DENNIS FRIENDLY

- Det. Friendly is a § 87(2)(b)-old black male, standing 6' tall, weighing 195 pounds, with black hair and brown eyes.
- On July 8, 2012, Det. Friendly was assigned to the chase vehicle #5636, which is a white Dodge Caravan minivan, assisting the arresting officer of the day. He was dressed in plainclothes and was working with Sgt. White, Det. Reynolds, and Det. Lavelle. Det. Friendly worked from 2:27 p.m. on July 8, 2012 until 6:00 a.m. on July 9, 2012.

Memo Book:

On July 8, 2012, at 7:50 p.m., two people were arrested at the corner of Newport Street and Georgia Avenue (encl. 13a-d).

CCRB Statement:

Det. Friendly was interviewed at the CCRB on October 18, 2012 (encl. 13e-f). On July 8, 2012, at 7:50 p.m., Det. Friendly was outside his vehicle assisting a stranded female motorist at the corner of Newport Street and Georgia Avenue in Brooklyn. Det. Friendly's vehicle was parked nearby, although he could not recall exactly where. Sgt. Michael White, Det. Ronald Reynolds and Det. Lavelle were next to the police vehicle, further from the intersection than Det. Friendly. Det. Friendly was standing by the side of the road near the stop sign, when he noticed a vehicle, about two car lengths away, containing § 87(2)(b) and § 87(2)(b). The vehicle stopped at the stop sign, a foot or two away from Det. Friendly, who noted that the car had a New York license plate, but did not have registration or inspection stickers displayed in the window.

Det. Friendly turned towards the car and began to approach the vehicle to check on the absence of the registration or inspection stickers, which is a moving violation. As Det. Friendly turned, his shield, which was worn on a lanyard around his neck outside his clothing, became visible to the occupants of the car. § 87(2)(b) who was the driver, saw Det. Friendly, looked shocked, and dropped something that he was holding, that Det. Friendly described as a quantity of a controlled substance onto the center console of the vehicle. Det. Friendly could not describe the item that § 87(2)(b) dropped. Det. Friendly stated that he was aware that this was a controlled substance based on his experience, but could not describe the item or its packaging at all. Det. Friendly could not recall whether the item was packaging or a type of drug delivery system. Det. Friendly did not recall the size, color, or type of drug it was, but recognized it at the time. The driver's side front window was down and Det. Friendly could see clearly into the car.

As he approached, Det. Friendly could still see the quantity of controlled substance on the center console, which was in plain view on an open tray, not inside a compartment. Det. Friendly's view of the area was not obstructed and he did not recall there being any other items in that area. Det. Friendly could not recall whether the item was open or closed and did not know whether the individual was using or had used the drug or was involved in a transaction. Det. Friendly stated that the car was not very clean, but could not recall exactly where there was mess in the car. Upon reviewing the Criminal Court Complaint, Det. Friendly stated that the item that he had seen § 87(2)(b) drop and that he recovered from the vehicle was a short straw, with heroin residue on it. Det. Friendly could not recall specifically the length of the straw that was recovered, but stated that such straws can be 3-4" long, and are shorter than a straw provided in a restaurant. Det. Friendly did not recall what color the residue on the straw was, but stated that it is typically a different color from the straw and is typically visible. Det. Friendly did not observe the residue on the straw when he initially saw it, but discovered the residue upon further investigation.

Det. Friendly identified himself as a police officer and instructed § 87(2)(b) to turn the car off. § 87(2)(b) complied. Det. Friendly instructed § 87(2)(b) to exit the car. § 87(2)(b) complied and Det. Friendly placed handcuffs on him. Det. Friendly instructed § 87(2)(b) to exit the car and placed handcuffs on him. Sgt. White, Det. Reynolds and Det. Lavelle approached the location. Det. Friendly retrieved the controlled substance from the car. Det. Friendly frisked and searched § 87(2)(b) and § 87(2)(b). Det. Friendly did not discuss a phone with either of the individuals. Det. Friendly searched the immediate area around where the controlled substance was found and the two front seats in the vehicle. The vehicle was returned to the 75th Precinct station house, but Det. Friendly could not recall if he or another officer drove the vehicle. An inventory search of the vehicle was conducted at the 75th Precinct station house, which did not reveal any other controlled substances. § 87(2)(b) and § 87(2)(b) were arrested for § 87(2)(b).

Witness Officer: DET. JENNIFER LAVELLE

- Det. Lavelle is a § 87(2)(b)-old white female, standing 5'8", weighing 145 pounds, with brown hair and brown eyes. Since the time of the incident, she has been promoted to Sergeant.
- On July 8, 2012, Det. Lavelle was a detective assigned to Brooklyn North Narcotics, and was assigned to the Chase Auto, working with Sgt. White. She was dressed in plainclothes and assigned to the chase vehicle, which was #5636, a white minivan. Det. Lavelle worked from 2:27 p.m. on July 8, 2012 until 4:00 a.m. on July 9, 2012.

Memo book:

At 7:50 p.m. 2 people were arrested at the corner of Newport Street and Georgia Avenue (encl. 14a-c).

CCRB Statement:

Sgt. Lavelle was interviewed at the CCRB on February 21, 2013 (encl. 14d-e). On July 8, 2012, at 7:50 p.m., Sgt. Lavelle was with Sgt. White in the chase vehicle. Sgt. Lavelle had no recollection of the arrests at Georgia Avenue and Newport Street in Brooklyn, but stated that the sergeant went to incident locations as needed to verify arrests. When presented with photographs and police documents related to the incident, Sgt. Lavelle did not recognize § 87(2)(b) or § 87(2)(b) and did not recall the incident on July 8, 2012. Sgt. Lavelle did not recall working with Det. Friendly on July 8, 2012 and Sgt. Lavelle did not recall PO James Famiano being assigned to the chase vehicle with her. Sgt. Lavelle did not see any officer ask § 87(2)(b) to exit a vehicle, frisk § 87(2)(b) or search § 87(2)(b) front pants pockets. Sgt. Lavelle did not see any officer search the vehicle which § 87(2)(b) and § 87(2)(b) had been inside.

NYPD Document(s)

Criminal Court Complaint

In the Criminal Court Complaint related to § 87(2)(b) arrest, § 87(2)(b) completed on July 9, 2012, PO James Famiano stated that he was informed by Det. Friendly that Det. Friendly observed § 87(2)(b) driving and § 87(2)(b) in the passenger seat of a car, lacking valid inspection stickers (encl. 19). Det. Friendly informed PO Famiano that he observed a straw containing heroin residue in plain view and recovered it from the center console of their vehicle. Based on his professional training and prior arrests for heroin, Det. Friendly noticed that the residue appeared to be heroin and recognized the straw as packaging commonly used with heroin. Therefore, § 87(2)(b) was charged with § 87(2)(b).

Property Clerk Invoice

Invoice #§ 87(2)(b) was prepared for a straw with heroin residue retrieved from § 87(2)(b) and § 87(2)(b) which was vouchered as arrest evidence (encl. 22).

Arrest for Incident and Disposition

- On § 87(2)(b), § 87(2)(b) pled guilty to Disorderly Conduct and was sentenced to jail time (encl. 25h-k).

- § 87(2)(b) arrest § 87(2)(b) Case number § 87(2)(b) remains open. The next scheduled court date is § 87(2)(b) in Criminal Court (encl. 24g-i).

Status of Civil Proceedings

- Neither § 87(2)(b) nor § 87(2)(b) have filed a Notice of Claim with the City of New York as of March 14, 2013, with regard to this incident (encl. 23).

Civilian(s) Criminal History

- § 87(2)(b)
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Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 3).
- This is the first CCRB complaint involving § 87(2)(b) (encl. 4).

Subject Officer(s) CCRB History

- Det. Friendly has been a member of the service for 10 years and there are 4 substantiated CCRB allegations against him (encl. 2a-c).

Conclusion

Identification of Subject Officer(s)

Det. Friendly acknowledged interacting with § 87(2)(b) and § 87(2)(b) on July 8, 2012.

Investigative Findings and Recommendations

Allegations not pleaded

It is undisputed that the vehicle had expired registration stickers, therefore, the vehicle stop is not being pleaded. It is undisputed that Det. Friendly frisked and searched § 87(2)(b) and § 87(2)(b) § 87(2)(g)

Allegation A: Abuse of Authority - Det. Dennis Friendly searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

